

as death or accident insurance, he may be permitted to continue as an ordinary member, but not as office bearer or representative, of that Union. The responsibility for satisfying the General Manager in this respect will rest with the officer concerned.

7. Demonstration. —No railway servant shall engage himself or participate in any demonstration which is prejudicial to the interests of the sovereignty and integrity of India, the security of the State, friendly relations with foreign states, public order, decency or morality, or which involves contempt of court, defamation or incitement to an offence.

Railway Ministry's decision. — (1) Where peaceful and orderly meetings or demonstrations are held during the lunch interval without obstructing in any manner the free passage to and from the office, there would be no objection to the holding of such meetings or demonstrations nor would the participating staff render themselves liable to disciplinary action thereby. The same position will apply in respect of peaceful and orderly meeting and demonstration during half an hour interval prior to the start of working hours and the half an hour interval succeeding the close of working hours.

Railway Ministry's decision. —(2) The position regarding the scope of this Rule is clarified as under:

- (i) Demonstration, meetings and processions, which are orderly and peaceful and are held outside office premises and outside working hours, should not be interfered with.
- (ii) The wearing of badges while at work should not be interfered with unless the badges have inscriptions or slogans which may offend against the interests of the sovereignty and integrity of India, the security of the State, friendly relations with foreign states, public order, decency or morality or which may amount to contempt of court, defamation or incitement to an offence. The colour of the badge or arm band should not be considered in any case.
- (iii) Demonstration or the raising of slogans or other such disorderly conduct should not be permitted within office premises and disciplinary proceedings should be started against those found indulging in such action within office premises.

(No. E(D & A) 63 GS1-3 dt. 27-4-1964.)

Railway Ministry's decision.—(3) It will be in order to take disciplinary action in respect of demonstration anywhere, even far away from office premises and at any time even on a holiday , resorted to by a railway servant, even in the capacity of a Trade Union worker, if that activity could be proved to be one falling within the prohibitive activities listed in this rule.

(No. E(L)66 UT 1-79 dt. 12-1-1966.)

Railway Ministry's decision. — (4) Peaceful and orderly meetings and demonstrations held during lunch intervals or during half an hour interval prior to the start of working hour and the half an hour interval succeeding the close of the working hours, without obstructing in any manner the free passage to and from the office do not infringe the provisions under this rule.

(No. E(L) 77 UT 1-79 dot. 26/28-7-1967.)

Railway Ministry's decision.—(5) The principle of 'No work no Pay' should not be circumvented in any way including by grant of leave to a railway servant for the period of absence caused due to participation in a strike.

(No. E(LR) II77 ST 1-126 dt. 15-7-1978.)

Railway Ministry's decision. – (6) If an application for casual leave is presented by a railway servant specifically for the purpose of participation in a demonstration, it is open to the competent authority to refuse casual leave for this purpose. If in spite of refusal, and employee absents himself from duty, he can be treated to have been unauthorisedly absent, with all the attendant consequences of unauthorised absence.

(No. E (G) 79 LE 1-10 dt. 19-6-1980.)

8. Connection with press or other media.---

- (1) No Railway servant shall, except with the previous sanction of the Government, own wholly or in part, or conduct or participate in the editing or management of, any newspaper or other periodical publication or electronic media.
- (2) Nothing in sub-rule (1) shall apply in case a Railway servant in the bonafide discharge of his official duties publishes a book or participates in a public media.
- (3) A Railway Servant publishing a book or participating in a public media shall, at all times, make it clear that the views expressed by him are his own and not that of Government.

(Authority: Railway Board's letter No. E (D&A) 95 GS 1-6 dated 14-9-95)

9. Criticism of Government.—No railway servant shall, in any radio broadcast, telecast through any electronic media or in any document published in his own name or anonymously, pseudonymously or in the name of any other person or in any communication to press or in any public utterance, make any statement of fact or opinion—

- (i) which has the effect of an adverse criticism of any current or recent policy or action of the Central Government or State Government ;
- (ii) which is capable of embarrassing the relations between the Central Government and the Government of any State; or
- (iii) which is capable of embarrassing the relations between the Central Government and the Government of any foreign State:

Provided that nothing in this rule shall apply to any statement made or views expressed by a railway servant in his official capacity or in the due performance of the duties assigned to him.

Railway Ministry's decision.—Serving Railway employees, if they, in their individual capacity or in their capacity of office bearer of association (including federation/unions of railway employees) or editor/publishers office bearers of journals issued by such association (including federation/union) pass resolutions making statement and/or expressing opinion on issues which involve violation by the individual employees of this Rule become liable for disciplinary action.

((E (D&A) 68GS1-6 dot. 24-6-1968.)